

that no noble man or subiecte whatsoeuer maye buylde any forte or howse wth battlem^{tes}: 5 E. 2; Britton & Bracton; *quaere*.

'*Nihil est illicitum quod est necessarium. Necessitas lex temporis*; but the Lo. Chauncellor said he had learned a rule that the prerogative meddles not wth *meum et tuum*; the kinge Can not take my lande or goods & giue it to another, but where the Common state or wealthe of the people or kingedome require it, the kinge's proclamacion bindes as a lawe, & neede not staye a parliam^{te}; & as a father saythe, when lawes are in making euery man may speake, but being made *iudicandum est secundum leges*.

'Louche was fined 200^l,¹ imprisonm^{te}, & his howse to be plucked downe, & for contemptuous wordes againste a J. of p., Sr John Granger, he was to be bounde to his good behaioure. [p. 312]
Sentence

'Hollande, in respecte of his milde & modeste caryage, w^{ch} was much Commended by the Courte, he was fyned 100^l, imprisonm^{te}, & the forefronte of his howse to be newe buylde wth bricke before whitsontide nexte, or else to be plucked downe.'

Sir Henry Mountague,² Recorder of London, and now the King's Counsel at large, the place that Sir Francis Bacon had, informed, that these Causes being infinite, this Court two years ago appointed a Commission, and by it they found three hundred faulty in this, and in four large houses they found now 8,000 inhabitants, & the last great plague 800 out of one of them died of the pest; and if it be not reformed the people cannot have food, nor can they be governed.

¹ See Appendix VII.

² Third son of Edward, eldest son of Sir Edward Montagu, Chief Justice of the King's Bench and Common Pleas in the reigns of Henry VIII. and Edward VI. Elected Recorder of London, 1603; M.P. for the City of London, 1604; King's Serjeant, 1611; Chief Justice of the

King's Bench, 1616; Lord Treasurer, 1620, when he was created Baron Montagu of Kimbolton and Viscount Mandevill; Lord President of the Council, 1621; created Earl of Manchester, 1626; Lord Privy Seal, 1628; ob. 7 Nov. 1642. See Foss's *Judges*; *Complete Peerage* by G.E.C.